

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JASMIN LOPEZ,

Plaintiff,

Index No.:

Date Filed:

-against-

Plaintiff designates
KINGS COUNTY
as the place of trialTHE CITY OF NEW YORK, P. O. DANA K.
LADSON [TAX REG. #941282], P.O. JAMAL I.
MOYE [TAX REG. #958958], and JOHN DOE
AND JANE DOE (the names John and
Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.

SUMMONS
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this amended summons, to serve a notice of appearance on the Plaintiff's Attorneys within twenty days after the service of this amended summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this amended summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
October 26, 2023

UGO UZOH, P.C.

By: Ugochukwu Uzoh
Ugochukwu Uzoh
Attorney for the Plaintiff
56 Willoughby Street, Third Floor
Brooklyn, New York 11201
(718) 874-6045To:
THE CITY OF NEW YORK
LAW DEPARTMENT [CORPORATION COUNSEL]
100 Church Street
New York, NY 10007P.O. Dana K. Ladson [Tax Reg. #941282]
NYPD-Brooklyn Court Section
360 Adams Street
Brooklyn, NY 11201P.O. Jamal I. Moye [Tax Reg. #958958]
NYPD-73rd Precinct
1470 East New York Avenue
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JASMIN LOPEZ,

Plaintiff,

Index No.

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, P. O. DANA K.
LADSON [TAX REG. #941282], P.O. JAMAL I.
MOYE [TAX REG. #958958], and JOHN DOE
AND JANE DOE (the names John and
Jane Doe being fictitious, as the true names
are presently unknown),
Defendants.

-----X

Plaintiff, JASMIN LOPEZ, by her attorney, The Law Offices of UGO UZOH, P.C.,
complaining of the defendants herein, The City of New York, P.O. Dana K. Ladson [Tax
Reg. #941282], P.O. Jamal I. Moye [Tax Reg. #958958], and John Doe and Jane Doe
(collectively, “defendants”), respectfully alleges as follows:

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

THE PARTIES

2. Plaintiff is and was at all times material herein a resident of Brooklyn, County of Kings, City and State of New York.
3. Defendant City of New York (“City”) is a municipal corporation duly organized and existing under the laws of the State of New York.
4. The City of New York Police Department (“NYPD”) is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.

5. Defendant P.O. Dana K. Ladson [Tax Reg. #941282] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
6. Defendant P.O. Jamal I. Moye [Tax Reg. #958958] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
7. Defendants John Doe and Jane Doe were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
8. Defendants Ladson, Moye, and John Doe and Jane Doe are collectively referred to herein as “defendant officers”.
9. At all times material to this Complaint, the defendant officers acted toward plaintiff under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

10. On or about March 15, 2020, at approximately 7:00 p.m., defendant officers, acting in concert, arrested plaintiff without cause at or close to the corner of Mother Gaston Boulevard and New Lots Avenue, Brooklyn, New York, and unreasonably detained the plaintiff for a lengthy period of time thereafter.
11. Plaintiff, however, did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
12. Prior to the arrest, plaintiff and her children had visited her friend, Mercedes Thomas, at her nearby residence.
13. After spending time with Ms. Thomas, plaintiff’s boyfriend and the father of her children, Lawrence Johnson, drove to the location of the arrest to pick them up and drive them home.
14. Upon arrival, Mr. Johnson legally parked his vehicle and waited for the plaintiff and the children to join him.
15. Immediately thereafter, defendant officers pulled up behind Mr. Johnson’s vehicle.

16. Defendant officers then exited their police vehicle and approached Mr. Johnson.
17. Upon approaching Mr. Johnson, defendant officers began to interrogate him asking him several questions including, but not limited to, what he was doing at the location.
18. Mr. Johnson calmly answered the questions and informed defendant officers that he was waiting for his family.
19. At some point, defendant officers directed Mr. Johnson to hand over his state issued identification card to them.
20. Shortly thereafter, defendant officers directed Mr. Johnson to exit the vehicle so he could be handcuffed and he and his vehicle searched.
21. Defendant officers indicated that Mr. Johnson was previously arrested and charged with possession of weapons.
22. As Mr. Johnson continued to inquire as to what was going on and the reason for his arrest, plaintiff and the children came down to join Mr. Johnson.
23. Plaintiff opened the rear passenger door of the car for the children, and the children entered the back seat of the car.
24. As plaintiff attempted to open the front passenger door to enter the car, defendant officers forcefully grabbed her by her wrist pulling her back.
25. Defendant officers blocked plaintiff from opening the door and/or entering the car.
26. Plaintiff was caused to sustain injuries because of the conduct of defendant officers.
27. Plaintiff inquired as to what was going on.
28. Defendant officers ignored the plaintiff and did not respond to her inquiry.
29. Plaintiff attempted to record the incident/encounter on her cell phone.
30. Defendant officers forcefully snatched away the cell phone from the plaintiff and seized her cell phone.
31. Defendant officers subsequently removed the plaintiff's children from the vehicle and proceeded to illegally search the vehicle trashing and damaging the vehicle in the process.

32. Defendant officers' illegal and warrantless search of the vehicle did not yield any contraband.
33. After detaining the plaintiff at the scene for a lengthy period of time, defendant officers caused a legal process to issue against the plaintiff charging her with various crimes including N.Y. PL 240.20 'Disorderly conduct'.
34. Plaintiff was eventually released from her unlawful detention but was required to return to the criminal court to defend the false charge(s) levied against her.
35. On or about April 28, 2021, the false charge(s) levied against plaintiff was dismissed and sealed.
36. The New York City Civilian Review Complaint Board ("CCRB") subsequently reviewed the conduct of the defendant officers and substantiated most of the allegations against them.
37. Pursuant to its letter dated March 23, 2022, documenting its findings, the CCRB concluded that the defendant officers abused their authority by, among other things, snatching and seizing the plaintiff's cell phone and thereby interfering with her recording of the incident, issuing a retaliatory legal process to the plaintiff, illegally searching, trashing, and damaging the vehicle and plaintiff's properties, and threatening and harassing the plaintiff.
38. Each and every officer who responded to and/or was present at the location of the arrest(s) and at the precinct and/or station house knew and was fully aware that the plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
39. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiff.
40. As a result of the aforesaid actions by defendants, plaintiff suffered and continues to suffer emotional distress, fear, embarrassment, humiliation,

shock, discomfort, loss of liberty, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

41. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 40 of this complaint as though fully set forth herein.
42. Defendant officers arrested the plaintiff without probable cause or reasonable grounds.
43. The conduct of defendant officers, as described herein, amounted to false arrest.
44. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
45. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION - against defendant officers

46. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 45 of this complaint as though fully set forth herein.
47. Defendant officers forwarded to the prosecutors their falsified records and statements.
48. Relying upon the records and statements, the prosecutors initiated criminal actions against the plaintiff.
49. Plaintiff was arraigned on a complaint sworn to by defendant officers falsely charging the plaintiff with crime(s).
50. Plaintiff was required to, and did, appear in court to defend herself from the false charge(s) levied against her with malice by defendants.
51. Because of the conduct of the defendants, plaintiff was maliciously prosecuted.
52. Eventually, the criminal proceedings terminated in plaintiff's favor.

53. The conduct of defendant officers, as described herein, amounted to malicious prosecution.
54. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
55. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FABRICATION OF EVIDENCE AND DENIAL OF RIGHT TO A FAIR TRIAL - against defendant officers

56. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 55 of this complaint as though fully set forth herein.
57. Defendant officers manufactured evidence of criminality against the plaintiff likely to influence a jury's decision which the prosecutors relied upon to initiate criminal actions against the plaintiff.
58. The plaintiff was deprived of her liberty as a result.
59. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of right to a fair trial.
60. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
61. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK AND UNREASONABLE SEARCH & SEIZURE - against defendant officers

62. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 61 of this complaint as though fully set forth herein.
63. Defendant officers unlawfully stopped and subjected the plaintiff to an illegal search of her person and property.

64. The conduct of defendant officers, as described herein, amounted to unlawful stop and frisk and unreasonable searches and seizures.
65. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
66. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

67. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 66 of this complaint as though fully set forth herein.
68. The conduct of defendant officers, as described herein, amounted to excessive use of force.
69. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
70. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: DENIAL OF RIGHT TO EQUAL PROTECTION - against defendant officers

71. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 70 of this complaint as though fully set forth herein.
72. Upon information and belief, defendant officers and many police officers assigned to NYPD-73rd Precinct, which covers the plaintiff's neighborhood, routinely harass the plaintiff and her friends and family.
73. Defendant officers would often stop, frisk, and detain the plaintiff and her friends and family whenever they run into them without cause or reason, and would often target and unlawfully re-arrest and charge individuals who are

members of racial/ethnic minority groups, such as the plaintiff, as repeat offenders.

74. Plaintiff, who is of Hispanic heritage, has complained on numerous occasions that defendants routinely engage in racial profiling.
75. Defendants have refused to conduct any investigations concerning the plaintiff's complaints simply because she is a member of a racial/ethnic minority group.
76. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
77. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: FIRST AMENDMENT RETALIATION - against defendant officers

78. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 77 of this complaint as though fully set forth herein.
79. Defendant officers arrested the plaintiff, seized her cell phone, and issued her with a legal process in retaliation for questioning their conduct on March 15, 2020.
80. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
81. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: MALICIOUS ABUSE OF PROCESS - against defendant officers

82. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 81 of this complaint as though fully set forth herein.

83. Defendant officers caused a legal process to issue against the plaintiff to punish her for questioning their conduct on March 15, 2020 and to force the plaintiff to expend her time and resources in defending the false charge(s) levied against her.
84. Plaintiff was required to, and did, appear in court to defend herself from the false charge(s) levied against her with malice by defendants.
85. Because of the conduct of the defendants, plaintiff was forced to expend her time and resources in defending the false charge(s) levied against her.
86. Eventually, the criminal proceedings terminated in plaintiff's favor.
87. The conduct of defendant officers, as described herein, amounted to malicious abuse of process.
88. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of defendant officers, individually and severally.

NINTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

89. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 88 of this complaint as though fully set forth herein.
90. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
91. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
92. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
93. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of defendant officers, individually and severally.

TENTH CAUSE OF ACTION: FAILURE TO
TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against
defendant City

94. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 93 of this complaint as though fully set forth herein.
95. Defendant City, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of using private information from sealed arrests to target and unlawfully stop, re-arrest, and charge individuals who are members of racial/ethnic minority groups such as plaintiff as repeat offenders.
96. As was recently observed by Niji Jain, an attorney at the Bronx Defenders, “the NYPD has been using private information from sealed arrests in over a dozen of their interconnected surveillance databases” to target and unlawfully re-arrest and charge individuals who are members of racial/ethnic minority groups as repeat offenders. *See CityLimits*, NYPD Can No Longer Access Sealed Arrest Records Without Court Order, Judge Rules, <https://citylimits.org/2021/09/28/nypd-can-no-longer-access-sealed-arrest-records-without-court-order-judge-rules/> (last visited September 1, 2023).
97. Information available indicates that the NYPD’s “unlawful use of these records has primarily harmed Black and brown New Yorkers who bear the brunt of the NYPD’s over-policing of low-income communities of color.” *See CityLimits*, Opinion: The NYPD’s Abuse of Sealed Arrest Records Jeopardizes All New Yorkers, <https://citylimits.org/2023/04/20/opinion-the-nypds-abuse-of-sealed-arrest-records-jeopardizes-all-new-yorkers/#:~:text=%E2%80%9CLast%20month%2C%20a%20New%20York,for%20the%20past%2046%20years.%E2%80%9D> (last visited September 1, 2023).
98. In a decision issued in *R. C. v. City of New York* (Index No. 153739/2018), concerning the plaintiffs’ motion for preliminary injunction to, among other things, restrain and enjoin defendants from instructing NYPD personnel that they may access and use sealed arrest information without a court order and

to require defendants to issue a FINEST training message stating that NYPD personnel may not access and use sealed arrest information without a court order, the court observed, among other things, that the “defendants freely admit that their prior training regarding the sealing of records was contrary to law” and that “the NYPD did not properly train [its police officers] as to the sealing statutes”.

99. Relying upon City’s policy and practices, and the fact that it has failed to properly train defendant officers as to the sealing statutes, defendant officers targeted and unlawfully stopped and arrested the plaintiff and her family and, thereafter, falsely charged her with crime or offense.
100. In addition, the City, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups, such as plaintiff, on the pretext that they were involved in crimes.
101. The existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
102. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the court observed that defendant City had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.
103. In *Ligon v. City of New York*, 925 F. Supp. 2d 478 (S.D.N.Y. 2013), the court determined that defendant City, acting through the NYPD, engages in unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).
104. Notably, numerous civil rights complaints filed in this district and other courts have similarly alleged that many of the police officers involved in this case, including the defendant officers, routinely stop, frisk, and/or search, and manufacture evidence of criminality against individuals who are

members of racial/ethnic minority groups, such as the plaintiff, in order to arrest and maliciously prosecute them. *See, e.g., Lawrence Johnson v. City of New York* (Index No. 501418/2023), *Cardell Alston v. City of New York* (Case No. 22 CV 3665), *Quashawn Jackson v. City of New York* (Index No. 508095/2020), *Tyquan Spann v. City of New York* (Index No. 520199/2017), *Equan Yunus v. City of New York* (Case No. 16 CV 4465).

105. Defendant City has equally determined that the defendant officers, among other things, make false statements, make unlawful entry into premises, and perform unlawful searches of individuals who are members of racial/ethnic minority groups, such as the plaintiff.
106. Defendant City has settled numerous lawsuits in this district against several police officers assigned to the NYPD-73rd Precinct alleging, among other things, that the police officers unlawfully stopped and frisked, falsely arrested, and maliciously prosecuted the plaintiffs without probable cause.
107. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police routinely stop, search & seize, fabricate evidence, arrest innocent citizens without probable cause, and use excessive force in the arrest of innocent citizens particularly individuals who are members of racial/ethnic minority groups, such as the plaintiff.
108. As a result of defendant City's failure to properly train, supervise or discipline its police officers, defendant officers unlawfully arrested the plaintiff, unreasonably detained her, and abused and/or assaulted the plaintiff.
109. Defendant City maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiffs' injuries as described herein.

110. The actions of defendants, acting under color of State law, deprived plaintiff of her due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in their person and property, to be free from abuse of process, the excessive use of force and the right to due process.
111. By these actions, defendants have deprived plaintiff of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

ELEVENTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendant officers

112. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 111 of this complaint as though fully set forth herein.
113. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiff without probable cause or reasonable suspicion, and harassing and assaulting her and depriving her of due process and equal protection of laws, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.
114. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiff of her constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

115. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiff of her constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.

116. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiff's state constitutional rights.

TWELFTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) -
against defendant officers

117. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 116 of this complaint as though fully set forth herein.

118. The conduct of the defendant officers, as described herein, amounted to false arrest/imprisonment.

119. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of defendant officers, individually and severally.

THIRTEENTH CAUSE OF ACTION: TORTS (MALICIOUS PROSECUTION) -
against defendant officers

120. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 119 of this complaint as though fully set forth herein.

121. The conduct of defendant officers, as described herein, amounted to malicious prosecution.

122. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of defendant officers, individually and severally.

FOURTEENTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendant officers

123. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 122 of this complaint as though fully set forth herein.
124. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff.
125. Plaintiff's emotional distress has damaged her personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention and imprisonment by defendants.
126. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of defendant officers, individually and severally.

DAMAGES

127. That by reason of the foregoing, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff respectfully prays judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
October 26, 2023

UGO UZOH, P.C.

By: *Ugochukwu Uzoh*
Ugochukwu Uzoh
Attorney for the Plaintiff
56 Willoughby Street, Third Floor
Brooklyn, N.Y. 11201
Tel. No: (718) 874-6045
Fax No: (718) 576-2685
Email: u.ugochukwu@yahoo.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JASMIN LOPEZ,

Index No.:

Plaintiff,

-against-

ATTORNEY'S
VERIFICATIONTHE CITY OF NEW YORK, P. O. DANA K.
LADSON [TAX REG. #941282], P.O. JAMAL I.
MOYE [TAX REG. #958958], and JOHN DOE
AND JANE DOE (the names John and
Jane Doe being fictitious, as the true names
are presently unknown),Defendants.
-----X

Ugochukwu Uzoh, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of UGO UZOH, P.C., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof, the same is true of
my own knowledge except as to matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by the plaintiff because plaintiff does not
reside in Kings County, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's
file(s), which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Brooklyn, New York
October 26, 2023

Ugochukwu Uzoh
Ugochukwu Uzoh

**THE SUPREME COURT OF THE
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, KINGS COUNTY,
BOROUGH OF BROOKLYN, CITY OF NEW YORK
ON THE ____ DAY OF ____, 20__

JASMIN LOPEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P. O. DANA K.
LADSON [TAX REG. #941282], P.O. JAMAL
I. MOYE [TAX REG. #958958], and JOHN
DOE AND JANE DOE (the names John and
Jane Doe being fictitious, as the true names
are presently unknown),

Defendant.

SUMMONS

&

VERIFIED COMPLAINT

CERTIFICATION: I hereby certify that all papers that I
have served, filed or submitted to the court in the within
action are not frivolous pursuant to Sec. 130-1.1a of the
Rules of the Chief Administrator (22NYCRR)

Ugochukwu Uzoh
Ugochukwu Uzoh

October 26, 2023
Dated

Ugo Uzoh, P.C.

Attorneys for plaintiff
Office & Post Office Address

**56 WILLOUGHBY STREET, THIRD FLOOR
BROOKLYN, NY 11201**

TEL: (718) 874-6045